

DC Expungement & Sealing Agent Training Reference

A complete operational knowledge base for record-clearing in the District of Columbia under the Second Chance Amendment Act: automatic vs. by-motion relief, expungement vs. sealing, waiting periods, ineligible offenses, procedure, and record requests.

Prepared for	LegalEase / Expungement.ai — Wilma assistant
Coverage	District of Columbia (Superior Court of DC; single jurisdiction)
Primary statutes	D.C. Code §§ 16-801 through 16-806 (Chapter 8, Title 16)
Controlling law	Second Chance Amendment Act of 2022 (D.C. Law 24-284), in force March 1, 2025
Document type	Internal training / retrieval reference — not legal advice
Currency	Reflects law as of mid-2026, post Second Chance Act implementation

VERIFY BEFORE RELYING

DC's framework was overhauled by the Second Chance Amendment Act, which took effect March 1, 2025 after years of delayed funding. It introduces AUTOMATIC relief for many records, but the automatic processes phase in over time: courts have until October 1, 2027 to complete automatic expungement of decriminalized offenses and automatic sealing of non-convictions and eligible misdemeanor convictions. Until a given record is actually processed, the by-motion route remains available and is often faster. The agent must not tell a user a record is already cleared automatically without verifying, and must track that automatic completion deadlines run to late 2027.

How the agent should use this document

DC has two cross-cutting distinctions the agent must resolve in order. First, **automatic vs. by-motion**: some relief now happens with no filing, while everything else requires a motion in DC Superior Court. Second, **expungement vs. sealing**: expungement restores the person to the position they held before the arrest (as if it never happened), while sealing hides the record from public view but keeps it available to courts, prosecutors, law enforcement, and certain employers and licensing bodies. The agent should always (1) check whether the record qualifies for automatic relief; (2) if not, determine whether expungement (actual innocence or decriminalized) or sealing (everything else) is the right motion; (3) apply the waiting period and screen the ineligible-offense list.

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Statutory shorthand used throughout

D.C. Code § 16-801	Definitions, incl. "completion of sentence" = unconditional discharge (no need to pay monetary p
§ 16-802	Automatic EXPUNGEMENT of decriminalized / legalized / unconstitutional offenses
§ 16-803	EXPUNGEMENT by motion on grounds of ACTUAL INNOCENCE (no waiting period)
§ 16-803.01 / .02	Fugitive-from-justice arrests; decriminalized/legalized offense sealing
§ 16-804	Effect of expungement (restores pre-arrest position)
§ 16-805	AUTOMATIC SEALING of non-convictions and certain misdemeanor convictions
§ 16-806	SEALING by motion — interests-of-justice standard; 5-yr misd / 8-yr felony waits
D.C. Law 24-284	Second Chance Amendment Act of 2022 — the controlling overhaul, eff. 3/1/2025

1. Eligibility rules

Four pathways exist after the Second Chance Act. Two are automatic (no filing) and two require a motion. The agent's job is to place the record in the right one.

Pathway 1 — Automatic expungement of decriminalized / legalized offenses (§ 16-802)

The statute's most favorable treatment, reserved for offenses later decriminalized, legalized, or held unconstitutional. The clearest example is simple possession of marijuana, decriminalized in 2014; this covers citations, arrests, charges, and convictions for such offenses. No action is required by the person. DC courts have until October 1, 2027 to complete these automatically.

Pathway 2 — Automatic sealing of non-convictions and certain misdemeanors (§ 16-805)

Two automatic-sealing categories. First, any case that ended without a conviction (charges dismissed, no-papered, acquittal), whether felony or misdemeanor, provided the offense is not on the ineligible list in Section 3. Second, misdemeanor convictions where 10 years have elapsed since completion of sentence and the offense is not ineligible. These seal by October 1, 2027 or within 90 days after the case terminates, whichever is later.

Pathway 3 — Expungement by motion, actual innocence (§ 16-803)

Available for any offense, felony or misdemeanor, with no waiting period; can be filed immediately. It is the strongest remedy (restores the pre-arrest position) but the hardest to win: the movant must prove by a preponderance of the evidence either that the offense did not occur, or that it occurred but the movant did not commit it. Requires the case to have reached a final disposition without a conviction. If denied, a second motion for the same relief cannot be filed for one year.

Pathway 4 — Sealing by motion, interests of justice (§ 16-806)

The catch-all for everything not automatically cleared: arrests for ineligible offenses, and convictions for eligible misdemeanors and most eligible felonies. The movant must show, by a preponderance of the evidence, that sealing is in the interests of justice. Waiting periods apply (Section 2), and Master Grid Group 1–3 offenses are excluded entirely (Section 3).

AGENT GUIDANCE

Resolve automatic first. If the record is a decriminalized offense or a non-conviction, tell the user it may already be cleared or scheduled for automatic clearing by Oct 1, 2027 — but that a motion can still be filed to clear it sooner, since automatic processing can lag.

Route convictions and ineligible-offense arrests to a § 16-806 sealing motion; route credible innocence claims to a § 16-803 expungement motion. Only § 16-803 and § 16-802 produce true expungement; § 16-805 and § 16-806 produce sealing.

2. Waiting periods

Waiting periods run from **completion of sentence**, which DC defines as unconditional discharge and which does NOT require payment of monetary penalties (fines/fees do not toll the clock). This is a meaningful difference from many states.

Pathway / matter	Remedy	Waiting period	Authority
Decriminalized / legalized offense	Expunge (automatic)	None (auto by Oct 1, 2027)	§ 16-802
Actual innocence	Expunge (motion)	None — file immediately	§ 16-803
Non-conviction (dismissed, no-papered, acquitted)	Seal (automatic)	None (auto by 10/1/27 or +90 days)	§ 16-805
Misdemeanor conviction (automatic track)	Seal (automatic)	10 years since completion	§ 16-805
Non-conviction, ineligible offense	Seal (motion)	At disposition (no wait)	§ 16-806
Misdemeanor conviction (by motion)	Seal (motion)	5 years since completion	§ 16-806(a)(3)(A)(i)
Eligible felony conviction (by motion)	Seal (motion)	8 years since completion	§ 16-806(a)(3)(A)(ii)

Note the two different misdemeanor numbers: a misdemeanor conviction seals **automatically** after 10 years, but a person need not wait that long — they may file a **motion** to seal the same conviction after only 5 years. The by-motion route is the faster path for someone who wants relief between years 5 and 10. The prosecutor may also waive the waiting periods in writing.

AGENT GUIDANCE

Compute from completion of sentence (unconditional discharge), and tell users unpaid fines do not extend the clock — a common misconception.

When a misdemeanor conviction is between 5 and 10 years past completion, steer the user to a § 16-806 motion rather than waiting for automatic sealing at year 10.

There is no waiting period for an actual-innocence expungement; if the user has a credible innocence claim, that motion can go in immediately.

3. Disqualifying / ineligible offenses

Two different exclusion mechanisms operate in DC. The agent must apply the right one to the right pathway.

A. Offenses excluded from AUTOMATIC sealing (§ 16-805)

A non-conviction or misdemeanor conviction will NOT seal automatically if the offense is any of the following (these can still be pursued by motion where otherwise eligible):

- Domestic violence / intrafamily offense; parental kidnapping; incest
- Abuse, neglect, or financial exploitation of a vulnerable adult or elderly person; refusal or neglect by a guardian
- Misdemeanor sexual abuse; non-consensual pornography; sexual performance using minors; any sex-offender-registration offense
- Stalking
- Any "dangerous offense" or "crime of violence" (as defined in DC law)
- Driving under the influence (DUI) and operating while impaired (OWI)

B. Offenses excluded from BY-MOTION sealing (§ 16-806)

For the catch-all sealing motion, the hard categorical bar is the DC Sentencing Commission Master Grid: a conviction for an offense in **Offense Severity Group 1, 2, or 3** of the Master Grid (as of the Second Chance Act's effective date) is not eligible for sealing at all. These are the most serious felonies (e.g., homicide and other top-tier violent and sexual felonies).

Other categorical limits

- **Open charges or pending cases.** An open charge generally renders a person ineligible for relief while it is pending.
- **Disqualifying arrest or conviction.** Certain other arrests/convictions on the record can bar sealing of a given record under the eligibility definitions.
- **Federal and out-of-jurisdiction records.** DC sealing/expungement reaches DC records; federal convictions and other jurisdictions are not covered.

VERIFY BEFORE RELYING

Both the § 16-805 ineligible list and the § 16-806 Master Grid Group 1–3 bar depend on how a specific DC offense is classified, and the "crime of violence" / "dangerous offense" definitions and the Master Grid are subject to amendment. The agent must map the user's actual DC Code offense to its classification and verify the current Master Grid grouping before declaring a felony ineligible — do not rely on the offense label alone.

AGENT GUIDANCE

The ineligible lists differ by pathway: an offense barred from automatic sealing may still be sealable by motion, and vice versa. Always check against the list that matches the pathway you are in. The one near-absolute bar is Master Grid Groups 1–3 for by-motion felony sealing.

An open case is the most common disqualifier in practice — confirm the user has no pending charges before advising that relief is available.

4. Case outcome rules

How the case ended drives both the remedy and whether a motion is even needed. This table is the agent's primary routing logic for DC.

Case outcome	Pathway	Remedy & route	Standard
Decriminalized/legalized offense (e.g., marijuana)	§ 16-802	Expunge — automatic	None
Non-conviction, eligible offense	§ 16-805	Seal — automatic	None
Non-conviction, ineligible offense	§ 16-806	Seal — by motion	Interests of justice
Actual innocence (no conviction)	§ 16-803	Expunge — by motion	Preponderance: offense didn't occur
Misdemeanor conviction, 10+ yrs, eligible	§ 16-805	Seal — automatic	None
Misdemeanor conviction, 5+ yrs	§ 16-806	Seal — by motion	Interests of justice
Eligible felony conviction, 8+ yrs	§ 16-806	Seal — by motion	Interests of justice
Master Grid Group 1-3 felony	None	Not eligible to seal	Categorical bar

For interests-of-justice sealing the court weighs the movant's interests, the community's interest in rehabilitation, and the community's interest in retaining access, plus factors like the nature of the offense, the person's history and characteristics, and time elapsed. The effect of relief differs sharply: an expungement under § 16-803 or § 16-802 restores the pre-arrest position so the person may treat the matter as never having occurred, while a sealed record under § 16-805/806 remains available to courts, prosecutors, law enforcement, licensing agencies, child-serving facilities, and certain senior government employers, and the person may deny it only to others.

AGENT GUIDANCE

Tell users plainly which remedy they are getting. Expungement (innocence or decriminalized) is near-complete erasure; sealing still leaves the record reachable by the listed agencies. Do not describe a sealing outcome as if the record disappears.

After a denied § 16-803 motion, advise that a renewed motion for the same relief must wait one year.

5. Required forms

Unlike Illinois's standardized fill-in forms, DC relief by motion is pursued through pleadings filed in the Superior Court of the District of Columbia, Criminal Division. The court and legal-aid providers supply templates, but the filing is fundamentally a motion with supporting points and authorities, not a checkbox form. The agent should help assemble these components.

Core components of a sealing or expungement filing

- 1 Motion to Seal (§ 16-806) or Motion to Expunge on Grounds of Actual Innocence (§ 16-803)** — caption (Superior Court of DC, Criminal Division), the movant's information, the case(s) at issue, and the relief sought.
- 2 Statement of Points and Authorities** — the legal argument: eligibility, waiting period satisfied (or waiver), and why relief meets the standard (interests of justice, or innocence by a preponderance).
- 3 Supporting exhibits and affidavits** — for innocence motions, this often includes the movant's affidavit and, where available, a victim or witness affidavit; for sealing, evidence of rehabilitation, employment, and the time elapsed.
- 4 Proposed Order** — for the judge's signature, directing the relevant agencies to seal or expunge within the statutory timeframe.
- 5 Certificate of Service** — confirming a copy was served on the prosecutor (the U.S. Attorney's Office or the DC Office of the Attorney General, depending on the offense).

Where templates come from

- DC Courts (dccourts.gov) — Superior Court Criminal Division filing information and any current motion templates.
- DC legal-aid providers — the Public Defender Service, Bread for the City, and the DC Justice Lab publish guides and sample motions.
- The prosecutor distinction matters: cases prosecuted by the U.S. Attorney's Office vs. the DC Office of the Attorney General are served accordingly.

AGENT GUIDANCE

Build the filing as a package: motion + points and authorities + exhibits + proposed order + certificate of service. A bare motion without the legal argument and a proposed order is incomplete. Identify the correct prosecutor to serve early; for most adult criminal matters in DC that is the U.S. Attorney's Office for DC, but some offenses are handled by the DC OAG.

6. Filing instructions

The general by-motion sequence in DC Superior Court:

- 1 Confirm whether relief is automatic.** If the record is a decriminalized offense or an eligible non-conviction, it may already be cleared or scheduled — check before filing, but a motion may still be filed to clear it sooner.
- 2 Obtain your record.** Get the DC arrest record (rap sheet) and the relevant case dispositions so eligibility, the waiting period, and case numbers are accurate (Section 9).
- 3 Confirm eligibility.** Check the pathway, the waiting period from completion of sentence, the ineligible-offense lists, and that there are no open charges.
- 4 Prepare the motion package.** Motion, statement of points and authorities, exhibits/affidavits, proposed order, and certificate of service.
- 5 File in the Superior Court of DC, Criminal Division.** File the motion in the case(s) sought to be sealed or expunged.
- 6 Serve the prosecutor.** Serve the U.S. Attorney's Office for DC (or the DC OAG for OAG-prosecuted matters). The prosecutor is not required to respond unless the court orders it.
- 7 Hearing / decision.** The court may rule on the papers or hold a hearing. For sealing it applies the interests-of-justice standard; for innocence it weighs the preponderance showing.
- 8 Order and execution.** If granted, eligible records are expunged within 90 days of the order (§ 16-803), or sealed as ordered; agencies update their records accordingly.

AGENT GUIDANCE

Because the prosecutor need not respond unless ordered, a well-supported, unopposed motion can be granted on the papers — emphasize a complete points-and-authorities and proposed order. Set expectations: even after a grant, execution takes time (up to 90 days for expungement), and automatic processing under the Act can run to October 2027.

7. Court-specific quirks

- **Single court, single jurisdiction.** All DC adult criminal record relief runs through the one Superior Court of DC, Criminal Division — there is no county-by-county venue question as in Illinois or Mississippi.
- **Two prosecutors.** DC is unusual: most adult crimes are prosecuted by the U.S. Attorney's Office for DC (a federal office), while certain offenses fall to the DC Office of the Attorney General. Service and any negotiation route to whichever prosecuted the case.
- **Automatic relief is phasing in.** The Second Chance Act's automatic provisions took effect 3/1/2025 but courts have until 10/1/2027 to complete the back-catalog — so a record that is theoretically eligible for automatic relief may not yet be cleared.
- **Completion of sentence excludes fines.** Unpaid monetary penalties do not delay eligibility — a DC-specific rule that differs from several states.
- **Prosecutor may waive the wait.** Under § 16-806(e) the prosecutor can waive the sealing waiting periods in writing, which can accelerate an otherwise-premature motion.
- **One-year bar on renewed innocence motions.** A denied § 16-803 motion cannot be re-filed for the same relief for one year.
- **Effect of sealing is partial.** Sealed DC records remain visible to a defined list of agencies and certain employers; only true expungement restores the pre-arrest position.

AGENT GUIDANCE

Always identify which prosecutor handled the case; it determines who to serve and who might waive a waiting period.

When a user believes their record is 'automatically cleared,' verify against the actual record — the Oct 2027 completion window means many eligible records are still pending.

8. Fee information

Item	Amount	Note
Filing a motion to seal / expunge	No statutory filing fee	DC does not charge a fee to file these motions
Automatic relief (§§ 16-802, 16-805)	\$0	No filing; handled by the court system
DC arrest record (MPD rap sheet)	Fee set by MPD	Police Clearance / record request; fee varies
FBI Identity History Summary	FBI fee	Only if a federal/multi-state record is relevant
Attorney fees (if represented)	Varies	Not required; motions can be filed pro se with legal-aid help

The most important fee fact in DC is the absence of one: there is no court filing fee to move to seal or expunge, and automatic relief costs nothing. The realistic out-of-pocket costs are the record-retrieval fee for the MPD rap sheet and, optionally, attorney fees. Several DC legal-aid organizations assist pro se filers at no cost.

AGENT GUIDANCE

Tell users there is no filing fee for the motion — a strong encouragement to pursue relief. Point cost-sensitive users to DC legal-aid providers (PDS, Bread for the City, DC Justice Lab).

The only near-certain cost is the MPD record-request fee; confirm the current amount rather than quoting a fixed figure.

9. Criminal record (rap sheet) request process

An accurate record is the foundation of any DC filing — the motion must identify the exact cases, dispositions, and dates, and eligibility turns on completion-of-sentence dates the user may not remember precisely.

A. DC arrest record — Metropolitan Police Department (MPD)

- MPD's Records Division issues the DC arrest record / Police Clearance used to identify arrests and charges.
- A fee applies; the request is typically made in person or as directed by MPD.

B. Court records — DC Superior Court

- The Superior Court (and its online case-access points) hold the case dockets and disposition records needed to confirm outcomes and completion dates.
- These confirm whether a case ended in conviction, dismissal, or acquittal — which determines the pathway.

C. Federal record — FBI Identity History Summary

- For records that may extend beyond DC, the FBI fingerprint-based Identity History Summary is the federal equivalent; DC relief reaches DC records only.

VERIFY BEFORE RELYING

MPD record-request methods and fees change. The agent should verify the current MPD Records Division process and fee at the time of advising rather than quoting fixed figures from memory.

AGENT GUIDANCE

Frame record retrieval as step one. Direct users to MPD for the arrest record and to DC Superior Court for case dispositions; do not rely on the user's memory of outcomes or completion dates to classify the pathway or compute the waiting period.

10. Sample motions and completed examples

DC relief by motion is a pleading, not a fill-in form, so the examples below show the structure and key recitals for the two motion types plus the two automatic pathways. Names, dates, and identifiers are fictional and illustrative.

Example A — Motion to Seal, interests of justice (§ 16-806), misdemeanor conviction

SUPERIOR COURT OF THE DISTRICT OF COLUMBIA
CRIMINAL DIVISION

UNITED STATES v. ANDRE L. CARTER Case No. 2018-CMD-004471

MOTION TO SEAL CRIMINAL RECORD PURSUANT TO D.C. CODE 16-806

1. Movant Andre L. Carter was convicted of one count of misdemeanor theft (second degree) on 03/14/2019.
2. Movant completed his sentence (unconditional discharge) on 03/14/2020; more than 5 years have elapsed (16-806(a)(3)(A)(i)).
3. The offense is not a crime of violence, DUI, sex offense, or other offense excluded from sealing.
4. Movant has no open charges or pending cases.
5. Sealing is in the interests of justice: Movant has maintained steady employment, completed vocational training, and has no subsequent arrests. The community interest in rehabilitation outweighs the interest in retaining public access.

WHEREFORE Movant requests an order sealing all records in this case pursuant to D.C. Code 16-806.

[Statement of Points and Authorities, Movant affidavit, and proposed Order attached. Served on the U.S. Attorney's Office.]

Example B — Motion to Expunge, actual innocence (§ 16-803)

SUPERIOR COURT OF THE DISTRICT OF COLUMBIA – CRIMINAL DIVISION
UNITED STATES v. MARIA S. DELGADO Case No. 2023-CMD-001188

MOTION TO EXPUNGE ON GROUNDS OF ACTUAL INNOCENCE (16-803)

1. The case reached final disposition without a conviction: the charge of simple assault was dismissed on 09/20/2023.
2. There is no waiting period for relief under 16-803; this motion is filed without delay.
3. By a preponderance of the evidence, the offense did not occur: the complaining witness has submitted a sworn affidavit (Exhibit 1) confirming no assault took place and that the report was mistaken.
4. Movant seeks restoration to the position she occupied before the arrest, as provided by D.C. Code 16-804.

WHEREFORE Movant requests an order expunging all records related to this citation, arrest, and charge within 90 days (16-803(f)).

[Points and Authorities, witness affidavit (Ex. 1), Movant affidavit (Ex. 2), proposed Order attached. Served on USAO.]

Examples C & D — Automatic pathways (no filing)

C. AUTOMATIC EXPUNGEMENT – decriminalized offense (16-802):

A 2012 conviction for simple possession of marijuana requires

NO motion. The DC courts will expunge it automatically; the back-catalog completion deadline is October 1, 2027. The user may verify status via their MPD record; if not yet cleared, a motion is unnecessary but status can be confirmed.

D. AUTOMATIC SEALING – non-conviction (16-805):

A 2021 theft charge that was dismissed (eligible offense, no conviction) seals automatically by 10/1/2027 or within 90 days of termination, whichever is later. No motion needed, though a 16-806 motion could seal it sooner if desired.

Proposed Order (motion pathways)

Each motion is accompanied by a proposed Order reciting the caption and directing the Metropolitan Police Department, the Superior Court Clerk, and any other record-holding agency to seal or expunge the identified records — within 90 days of the order for expungement under § 16-803.

This reference is an internal training and retrieval aid for the Wilma assistant. It summarizes DC statutes and common practice and is not legal advice. DC law changed substantially under the Second Chance Amendment Act and automatic processes phase in through October 2027; the agent must verify the current text of D.C. Code §§ 16-801 to 16-806, the Master Grid groupings, the ineligible-offense lists, MPD record-request procedures, and automatic-implementation status before relying on any rule here.